

24STCV04538 24STCV04538

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 24STCV04538 Hearing Date: June 24, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV04538

TOHID

NAEEM vs BUILDING 208 PRESERVATION, LLC, et al.

June

24, 2026

8:30

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NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH STATEMENTS OF COMPLIANCE (CODE
CIV. PROC., § 2031.320).

RULING:

The Court denies the

Motion.

I. BACKGROUND

The Court incorporates by

reference the Background section stated in the Minute Order entered on April 7,
2025.

On December 16, 2025, Plaintiff

filed the Motion seeking to compel Defendants' production of documents as
agreed in their discovery responses.

Defendants filed an

Opposition, arguing, inter alia, that Plaintiff failed to identify any document
not produced as agreed.

Plaintiff has filed an

impressively detailed Reply, adding points and authorities, and a Declaration
describing documents not produced, meet-and-confer efforts, and a desire to

itemize costs recoverable by a self-represented litigant as sanctions.

I.

LEGAL STANDARD

“If the party fails to

make a production in accordance with its statement of compliance, the opposing

party may file another motion to compel seeking compliance.” (Bd. of

Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1033

[citing Code Civ. Proc., § 2031.320].)

A discovery motion should

not be denied automatically based upon the reason that the moving parties

failed to meet and confer in good faith. (Obregon

v. Superior Court (1998) 67 Cal.App.4th 424, 434. But see Townsend v.

Superior Court (1998) 61 Cal.App.4th 1431, 1439 [motion must be denied

where lack of meet and confer].) A failure to meet and confer in good faith,

“may jeopardize the movant’s ability to obtain relief for the other side’s

alleged misuse of the discovery process.” (In re Marriage of Moore (2024)

102 Cal.App.5th 1275, 1298–1299.) “A determination of whether an attempt at

informal resolution is adequate . . . involves the exercise of discretion.” (Stewart v. Colonial W. Agency (2001) 87

Cal.App.4th 1006, 1016. Accord, Clement

v. Alegre (2009) 177 Cal.App.4th 1277, 1293-1294.)

II.

ANALYSIS

Plaintiff reasons that

Defendants failed to produce all documents promised in their statements of compliance, and that for any document not produced they are required to serve a Code-compliant declaration under Code of Civil Procedure section 2031.230 with the response stating a representation of inability to comply with the particular demand for inspection.

Defendants report their production of many documents and counterargue that Plaintiff failed to indicate how Defendants have failed to accomplish their production in accordance with their statement of compliance. Defendants also complain that Plaintiff failed to meet and confer.

A motion to compel

compliance as agreed with a request for production of documents is based upon a showing that the respondents failed "to permit an inspection 'in accordance

with that party's statement of compliance.'" (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code Civ. Proc., § 2031.320,

subd. (a).)

Plaintiff's Declaration,

separately filed December 16, 2026, states that documents were not produced as

agreed, but without any factual basis for reaching that generalized conclusion.

While Plaintiff's Reply

Declaration describes missing documents, it is untimely and thus prevents

Defendants from having any due-process opportunity to file a document

responding to it. "[T]he general rule is that new evidence is not permitted

even on reply." (Haydon v. Elegance at Dublin (2024) 97 Cal.App.5th

1280, 1289.)

Hence, the Court has no permissible

basis to identify any documents actually not produced in accordance with the

discovery requests and responses, as worded.

III.

CONCLUSION

The Court denies the

Motion.